

		modifications, or other alterations or repairs” were not in compliance with applicable building codes, that “notices of abatement or citations against the property” had been issued, that they had hired unlicensed workers to perform the Renovations, that architectural and engineering plans and specifications were not prepared, that structural, electrical, mechanical, and Title 24 engineering calculations were not performed, that required permits were not obtained, and that required building inspections were not performed all in furtherance of their mutual business purpose of maximizing profits on the “fix & flip” of the Property. (Compl. ¶¶ 16-17.) The above is sufficient to meet the heightened pleading requirements for a fraud cause of action. To the extent that additional fraudulent statements are alleged that have not been pled with sufficient specificity, additional information can be obtained through discovery. This is because a general demurrer does not lie to only part of a cause of action. If there are sufficient allegations to entitle plaintiff to relief, other allegations cannot be challenged by general demurrer. (<i>Daniels v. Select Portfolio Servicing, Inc.</i> (2016) 246 Cal.App.4th 1150, 1167, (disapproved on other grounds by <i>Sheen v. Wells Fargo Bank, N.A.</i> (2022) 12 Cal.5th 905, 948 & fn. 12).) Accordingly, the demurrer to the <u>first cause of action</u> is OVERRULED. Plaintiff’s objections to the Slome Declaration are SUSTAINED. Defendant Hopkins shall file his <u>Answer within 20 days</u>. Plaintiff to give notice.
6.	30-2024-01382035 Frank Recruitment Group, Inc vs. Loko AI, Inc	1. Motion to Appear Pro Hac Vice Plaintiff/Cross-Defendant, Frank Recruitment Group Inc.’s Application for Admission <i>Pro Hac Vice</i> of Michael J. Burns is GRANTED. The verified application contains the information required by California Rules of Court, rule 9.40, and demonstrates compliance with the service and fee requirements. (See Declaration of Michael J. Burns; Declaration of Patrick A. Hormillosa, ¶ 4.) Moving party to give notice.
7.	30-2025-01507508 Elevated Health, Inc vs. UHC of California	1. Motion to Appear Pro Hac Vice The unopposed application of attorney Robert Keefe of the law firm Boies Schiller Flexner LLP to appear pro hac vice on behalf of Defendant UHC of California is GRANTED. Moving attorney met the requirements of California Rules of Court, rule 9.40, and demonstrates compliance with the service and fee requirements. Moving attorney to give notice.

9.	30-2025-01503814 Memory Lane Homeowners Association vs. Grace	1. Case Management Conference 1. Motion to Deem Facts Admitted Plaintiff Memory Lane Homeowners Association (“Plaintiff”) moves for an order (1) deeming the truth of all matters specified in Plaintiff’s first set of Requests for Admission as admitted; and (2) imposing monetary sanctions on Defendant Andrew Robert Grace (“Defendant”). Code of Civil Procedure section 2033.280(b) provides that, when a party fails to serve a timely response to requests for admission, “[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).” Subdivision (c) provides that the Court shall make this order, “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” CCP §2033.280 provides that “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” Plaintiff served the written discovery on Defendant on November 19, 2025. (Decl. of Frank Mickadeit ¶ 1.) Defendant failed to serve any responses by the December 24, 2025. (<i>Id.</i>, ¶ 2.) As of the date of filing of the Motion, Defendant has served no responses. (<i>Id.</i>, ¶ 3.) In light of the above, Plaintiff’s unopposed Motion is GRANTED. The matters in Plaintiff’s requests for admission are deemed admitted. The Court GRANTS Plaintiff monetary sanctions against Defendant in the amount of \$457.50 (1.5 hrs at \$265/hr + \$60 filing fee). Sanctions are due and payable to Plaintiff’s counsel within 30 days of notice of this order. Plaintiff to give notice.
10.	30-2025-01456639 Marsh vs. General Motors LLC	1. Motion for Judgment on the Pleadings Defendant, General Motors, LLC (“GM”), moves for judgment on the pleadings as to all five causes of action asserted in the Complaint of Plaintiff, Robert Elliot Marsh (“Plaintiff”). The Motion is GRANTED, with 30 days leave to amend, as follows. “[A] motion for judgment on the pleadings is appropriate where the operative complaint does not state facts sufficient to constitute a cause of action against the named defendant.” (<i>Barajas v. Sativa L.A. Cnty. Water Dist.</i> (2023) 91 Cal.App.5th 1213, 1224, quotation marks and alteration omitted, review denied (Aug. 9, 2023).) “A motion sought on this basis is equivalent to a demurrer such that [the court’s] task is to examine the operative complaint’s allegations and any judicially noticed documents in order to assess whether the pled cause of action is legally viable.” (<i>Id.</i>, citation omitted.) Factual allegations are accepted as true and are given a liberal construction. (<i>Gerawan Farming, Inc. v. Lyons</i> (2000) 24 Cal.4th 468, 515-516.) Extrinsic evidence is not considered on a motion for judgment on the pleadings. (<i>Cloud v. Northrop Grumman Corp.</i> (1998) 67 Cal.App.4th 995, 999.)